

HOUSE No. 2269

The Commonwealth of Massachusetts

PRESENTED BY:

Dennis C. Gallagher

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act Bridgewater town charter article IV, town manager "temporary absence".

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>1/16/2025</i>

HOUSE No. 2269

By Representative Gallagher of Bridgewater, a petition (accompanied by bill, House, No. 2269) of Dennis C. Gallagher (by vote of the town) relative to the position of town manager in the town of Bridgewater. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act Bridgewater town charter article IV, town manager "temporary absence".

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Whereas, Article 89, Section 8 of the Massachusetts Constitution allows the legislative
2 body of the Town of Bridgewater to vote to submit a Special Act to the State Legislature to
3 Amend the current Charter of the Town;

4 Ordered, that the Town Council assembled voted to amend the Bridgewater Home Rule
5 Charter, Article IV, Section 4-7 and to send said amendment to the State Legislature as a Special
6 Act as follows:

7 Section 4-7 shall be deleted in its entirety and replaced with the following:

8 "Section 4-7. TEMPORARY ABSENCE

9 In the event of a temporary absence by the Town Manager of not more than twenty-one
10 consecutive days, the Assistant Town Manager shall perform the duties of that office.

11 If the Assistant Town Manager is for any reason unable to serve, the Town Manager shall
12 appoint a department head of the Town to perform the duties of that office during that period, by
13 a letter filed with the Town Clerk and the Town Council.

14 In the event of failure of the Town Manager to make such a designation of if the person
15 so designated is for any reason unable to serve, or is deemed not qualified by the Town Council,
16 the Town Council may appoint some other qualified person to perform the duties of the Town
17 Manager until the Town Manager returns.

18 No member of the Town Council shall serve as acting Town Manager."

19 Said Amendment shall only become effective and is contingent upon by the Town
20 Council, the State Legislature and the voters of the Town of Bridgewater.